

26SMCV04061 26SMCV04061

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Plaintiff seeks a preliminary injunction to stop an arbitration. Plaintiff claims that the arbitrator is adjudicating plaintiff's case, but is partial and biased. The arbitrator is allegedly adjudicating a series of issues that plaintiff contends were never submitted to her. Further, plaintiff is an indispensable witness but is not available for medical reasons. Plaintiff asserts that plaintiff challenged the arbitrator's neutrality, but the challenge was denied. Among other issues, plaintiff asserts that the parties never agreed to arbitration in the first place as to the issues now being decided, but is instead forcing plaintiff to arbitrate disputes pursuant to a contract that not all parties signed.

The issue arises out of a defendant between plaintiffs and certain defendants that required the arbitration of one, and only one, issue (according to plaintiff). That issue was in fact decided on March 31, 2026. Plaintiff says that the parties discussed additional arbitrations, but never reached an agreement. Even so, plaintiff asserts, the arbitrator has decided to arbitrate those other issues, which is not within the arbitrator's purview. The arbitrator is also including another party—Polaris—that is not a signatory to any arbitration agreement. Beyond that, plaintiff asserts that a continuance is necessary because plaintiff Salveson's testimony is required but is claimed to have a medical emergency. Plaintiff notes that the arbitrator is doing so even though the arbitrator claimed that Salveson was trying to stop the case from going forward.

Plaintiff also says that the arbitrator is not neutral. According to plaintiff, the arbitrator has a history involving

the firm that negotiated the underlying settlement agreement. When plaintiff brought it up, plaintiff asserts that the arbitrator claimed not to have worked with that firm. But plaintiff contends that the firm in question represented Warner Bros. and its affiliates during the time that the arbitrator was a “senior litigation executive” at Warner and that the arbitrator had praised that firm’s work in the past. The motion to disqualify the arbitrator was denied.

Plaintiff, through this application, is not seeking an order pulling the case from arbitration, but rather only seeks a short pause in the proceedings during which time plaintiff contends that the parties can present arguments to this court in a more complete way.

The request is DENIED. There is a timeliness question here. By late April, it seems to have become clear that the parties were not in agreement on the second phase of the arbitration. It is not clear to the court whether the issue was whether there ought to be any arbitration or only as to the scope. The arbitrator ordered the second arbitration to go forward on April 27, 2026. The court does not know why plaintiff waited until now to bring the instant request.

Salveson’s health condition became manifest no later than May 7, when it was brought to the arbitrator’s attention. That led to a continuance of the proposed hearing. However, the issue did not clear up and Salveson has not been able to engage in substantive communications with plaintiff’s counsel. Yet a further continuance was not granted. Plaintiff, however, waited until now to do anything about it in court.

Plaintiff says that there was a motion to dismiss on jurisdictional grounds, but it was denied on July 10—almost a month ago. The arbitrator found that there was an agreement to arbitrate and that the claims being arbitrated were within the agreement’s scope. The order further held that plaintiff’s medical absence was not good cause for a stay.

Thereafter, plaintiff moved to disqualify the arbitrator based on the alleged bias discussed above. That was recently denied on July 27, 2026. Yet plaintiff waited a week to bring this application after that.

In the instant case before this court, plaintiff asserts

that the arbitrator lacks jurisdiction to decide the matter, and plaintiff now seeks a TRO to stop the arbitration, at least temporarily. But as stated above, this could have, and should have, been raised sooner.

The court also questions the need for an injunction at all in the irreparable harm sense. Plaintiff can seek to vacate the arbitrator's award after it issues. Lack of jurisdiction can certainly be raised, as can bias or the refusal to hear evidence (meaning from plaintiff due to the medical condition). All of those are grounds to vacate the award. If plaintiff is correct, then the award will be vacated at that point and there will be no harm to plaintiff other than going through the arbitration proceeding. On the other hand, if plaintiff is not correct, then the arbitration will have been derailed (temporarily) resulting in a delay in getting an award for no good reason. Further, the arbitrator's view is that there was in fact no doubt but that a Phase II was to take place, and that both parties agreed it would occur shortly after the Phase I hearing. (That is in the order denying the motion to dismiss.) The arbitrator noted that this intent was affirmed by both parties multiple times, and that the arbitrator's jurisdiction was clear. As to the requested stay, the arbitrator noted that a stay had been given for plaintiff's medical issues—from June 9 to July 27—a six week postponement. The arbitrator declined any further extension given the lack of any medical evidence that would warrant such an extension. Moreover, the court is not even sure of the status of the arbitration. The court does not know if it is starting tomorrow, next month, or is already a week underway.

In any event, the application is DENIED. But that is WITHOUT PREJUDICE to whatever arguments plaintiff might make to challenge the award or vacate it in the proper course.